

HOUSE BILL 2178

By Lafferty

AN ACT to amend Tennessee Code Annotated, Title 4,
relative to the Tennessee technology development
corporation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-14-203, is amended by deleting the
section and substituting:

(a) Effective July 1, 2026, the Tennessee technology development corporation is
vacated and reconstituted in accordance with subsections (b) through (j).

(b) A twelve-member board of directors shall govern the corporation.

(c) Seven (7) members of the board of directors shall represent and be
appointed from the private sector, as follows:

(1) The governor shall appoint three (3) private sector representatives;

(2) The speaker of the house of representatives shall appoint two (2)
private sector representatives; and

(3) The speaker of the senate shall appoint two (2) private sector
representatives.

(d) Four (4) members of the board of directors shall represent and be appointed
from the public sector, as follows:

(1) The governor shall appoint two (2) public sector representatives, one
of whom shall be selected from lists of qualified persons submitted by interested
municipal and county organizations, including, but not limited to, the Tennessee
municipal league and the Tennessee county services association. The governor
shall consult with such interested organizations in making the appointment;

(2) The speaker of the house of representatives shall appoint one (1) public sector representative; and

(3) The speaker of the senate shall appoint one (1) public sector representative.

(e) The commissioner of economic and community development shall serve as an ex officio member of the board of directors.

(f) The board of directors shall elect a chair, vice chair, secretary, and such other officers as it deems necessary from among its members.

(g)

(1)

(A) Two (2) representatives of the private sector and one (1) representative of the public sector appointed by the governor shall each serve initial terms of three (3) years.

(B) One (1) representative of the private sector and the representative of the public sector appointed by the speaker of the house of representatives shall each serve initial terms of three (3) years.

(C) One (1) representative of the private sector and the representative of the public sector appointed by the speaker of the senate shall each serve initial terms of three (3) years.

(2)

(A) One (1) representative of the private sector and one (1) representative of the public sector appointed by the governor shall each serve initial terms of four (4) years.

(B) One (1) representative of the private sector appointed by the speaker of the house of representatives shall serve an initial term of four (4) years.

(C) One (1) representative of the private sector appointed by the speaker of the senate shall serve an initial term of four (4) years.

(3) After the initial appointments under subdivisions (g)(1) and (2) expire, all terms are for four (4) years, which begin on July 1 and expire on June 30 of each applicable year.

(4) Board members are eligible to serve successive terms if reappointed by the original authority.

(h) The board of directors shall appoint an executive committee of five (5) of its members to administer the day-to-day operations of the corporation. The chair of the corporation shall also serve as the chair of the executive committee.

(i) The board of directors shall not meet more than eight (8) times in a calendar year. The executive committee shall not meet more than four (4) times in a calendar year.

(j) The board of directors shall adopt and implement a conflict of interest policy for board members. The policy must mandate annual written disclosures of financial interests, other possible conflicts of interest, and an acknowledgement by board members that they have read and understand all aspects of the policy. The policy must also require persons who are to be appointed to the board of directors to acknowledge, as a condition of appointment, that they are not in conflict with the conditions of the policy.

SECTION 2. Tennessee Code Annotated, Section 4-29-248(a), is amended by deleting subdivision (57).

SECTION 3. Tennessee Code Annotated, Section 4-29-249(a), is amended by inserting the following as a new subdivision:

() Tennessee technology development corporation, created by § 4-14-201;

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.